

Vijendra Singh vs State Of U.P. on 10 April, 2023

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 88

Case :- CRIMINAL MISC. BAIL APPLICATION No. - 13304 of 2023

Applicant :- Vijendra Singh

Opposite Party :- State of U.P.

Counsel for Applicant :- Anil Kumar Bind

Counsel for Opposite Party :- G.A.

Hon'ble Sameer Jain,J.

Heard Sri Anil Kumar Bind, learned counsel for the applicant and Sri Tanay Kumar, learned AGA for the State-respondent.

The instant application has been filed seeking release of the applicant on bail in Case Crime No. 410 of 2022, under Sections 394, 342, 411, 420-B IPC, Police Station- Kotwali Kayamganj, District-Farrukhabad, during pendency of the trial in the court below.

FIR of the present case was lodged against three unknown persons under Sections 394, 342 IPC and according to the FIR, on 2.11.2022 three unknown persons after tying up the driver of the truck looted the truck along with iron rods, which were loaded in the truck.

Learned counsel for the applicant submitted that applicant was not named in the FIR and as per prosecution, on 4.11.2022 he was apprehend while he was sitting behind the alleged looted truck of the informant. He further submitted that it is alleged that from the truck, looted iron rods of the informant were also recovered.

He further submitted that applicant is having no concern with the alleged crime and he did not

participate in the alleged offence of robbery and he was only labour and he was falsely implicated by the police in the present matter. He further submitted that there is no evidence on record which can show that applicant was also participated in the alleged crime of robbery and no identification parade was conducted.

He further submitted that except the recovery of alleged truck and iron rods, there is no evidence against the applicant on record and there is only evidence against the applicant for the offence under Section 411 IPC and applicant is not having any criminal history and in the present matter, he is in jail since 4.11.2022.

Per contra, learned AGA opposed the prayer for bail and submitted that from the possession of applicant looted truck and iron rods were recovered but could not dispute the fact that applicant was not put for identification parade and there is no evidence against the applicant on record on the basis of which, it can be said that applicant also participated in the incident of robbery and applicant is not having any criminal history.

I have heard learned counsel for the parties and perused the record of the case.

Although, as per allegation, after 2 days from the alleged robbery of truck and iron rods, applicant was apprehended along with the looted articles but he was not put for any identification parade and there is no evidence on record on the basis of which, it can be inferred that he also participated in the offence of robbery.

Although, statement of the truck driver has been annexed along with the present bail application but he also in his statement did not state that he identified the applicant. Applicant is not having any previous criminal history and in the present matter, he is in jail since 4.11.2022, therefore, in my view applicant is entitled to be released on bail.

Accordingly, without expressing any opinion on the merits of the case, the instant bail application is allowed.

Let the applicant- Vijendra Singh be released on bail in the aforesaid case on furnishing a personal bond and two sureties each in the like amount to the satisfaction of the court concerned with the following conditions:-

- (i) The applicant shall appear before the trial court on the dates fixed, unless his personal presence is exempted.
- (ii) The applicant shall not directly or indirectly, make inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or any police officer or tamper with the evidence.
- (iii) The applicant shall not indulge in any criminal and anti-social activity.

In case of breach of any of the above condition, the prosecution will be at liberty to move an application before this Court for cancellation of the bail of the applicant.

Order Date :- 10.4.2023 / KK Patel